

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.
CHRISTINE MILLNER,

Plaintiffs,

- against -

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
PAUL GRUB and "JOHN and JANE DOES" -
Police Officers/badge numbers unknown,

SUMMONS and COMPLAINT

Defendants.

To the above named Defendants

-----X
Plaintiff resides at
438 Beach 40th Street, Apt. 10K
Far Rockaway, NY 11691
County of Queens

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: October 30, 2013

LAW OFFICE OF JOSEPH T. MULLEN, JR. & ASSOCIATES

By:


Neil A. Zirlin
Attorneys for Plaintiff
30 Vesey Street, 15th Floor
New York, New York 10007
(212) 766-1177

Defendant's Address:

THE CITY OF NEW YORK
100 Church Street
New York, NY

THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY

POLICE OFFICER PAUL GRUB
103RD Precinct
168-02 P.O. Edward Byrne Avenue
Queens, NY 10432

The nature of this action is set forth in the Complaint.

The relief sought is set forth in Complaint.

Upon your failure to appear, judgment will be taken against you by default for a sum that exceeds the jurisdictional limits of all lower courts with interest and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.
CHRISTINE MILLNER,

Plaintiffs,

- against -

COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
PAUL GRUB and "JOHN and JANE DOES" -Police Officers/badge
numbers unknown,

Defendants.

-----X

Plaintiffs, complaining of the defendants, by their attorney, JOSEPH T. MULLEN, JR., ESQ., upon
information and belief, allege as follows:

FACTS

1. That at all times hereinafter mentioned, plaintiff, CHRISTINE MILLNER, resided
in the County of Queens, City and State of New York.
2. That, upon information and belief, THE CITY OF NEW YORK (hereinafter referred to as "THE
CITY") is a municipal corporation organized and existing under and by virtue of the laws of the State of
New York.
3. That, at all times hereafter mentioned, the defendant THE NEW YORK CITY POLICE
DEPARTMENT (hereinafter also referred to as "NYPD") was and still is an agency of THE CITY and
subject to its control.
4. That at all times hereinafter mentioned Defendant Police Officer PAUL GRUB was a duly
appointed and acting officer of the NEW YORK CITY POLICE DEPARTMENT.
5. Upon information and belief, Defendants JOHN and JANE DOES-Police Officers/Badge
Numbers unknown were at all times hereinafter mentioned duly appointed and acting officers of the NEW
YORK CITY POLICE DEPARTMENT. The plaintiff intends to discover the identity of such persons.
6. That at all times hereinafter mentioned, defendant Police Officer PAUL GRUB was acting under
color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of
the CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

7. That at all times hereinafter mentioned, defendants JOHN AND JANE DOES-Police Officers/Unknown were acting under color of law, to wit: under color of the statutes, ordinances, regulations, policies, customs and practices of the CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

8. (a) On July 18, 2013, and within 90 days after the claim herein arose, the plaintiffs caused a Notice of Claim in writing, sworn to and verified, to be served upon THE CITY and THE NYPD.

(b) At least 30 days have elapsed prior to the commencement of this action since the claim was presented to said defendant THE CITY for adjustment as aforesaid, and it has refused adjustment or payment.

(c) This action is timely commenced pursuant to General Municipal Law subsection 50-i(1).

(d) A statutory hearing was conducted by THE CITY on October 3, 2013.

9. Plaintiff has in all respects complied with all statutory requirements for the commencement and prosecution of this action.

10. That at all times hereinafter mentioned, as a member of the NYPD, defendant POLICE OFFICER DEBRA JACK was an agent, employee and servant of THE CITY and acted within the scope of her employment and authority as a New York City Police Officer.

11. That at all times hereinafter mentioned, as members of the NYPD, defendants, JOHN AND JANE DOES - police officers/badge numbers unknown, were agents, employees and servants of THE CITY and acted within the scope of their employment and authority as New York City Police Officers.

12. That on August 3, 2012, the Plaintiff was lawfully present at 106-45 Union Hall Street, Jamaica, NY.

13. That on August 3, 2012, the Plaintiff was lawfully present at 106-45 Union Hall Street, Jamaica, NY, visiting her boyfriend Michael Timmons who resided at said address.

14. That at all times hereinafter mentioned, Plaintiff did not and never did reside at 106-45 Union Hall Street, Jamaica, NY.

15. That on or about August 3, 2012 defendant POLICE OFFICER PAUL GRUB arrived at said premises purportedly to execute a search warrant issued by the Honorable Suzanne Melendez.

16. That on or about August 3, 2012 defendants JOHN AND JANE DOES-police officers/badge

numbers unknown arrived at said premises to execute a search warrant issued by the Honorable Suzanne Melendez.

17. That upon information and belief, when the aforementioned police officers executed the search warrant they found the Plaintiff with Michael Timmons in his back bedroom of the apartment.

18. That upon information and belief the aforementioned police officers did not find any contraband in said bedroom.

19. That upon information and belief after detaining the Plaintiff and Michael Timmons, the aforementioned police officers broke down the padlocked door to the middle bedroom of the apartment.

20. That upon information and belief Jeffrey Timmons, the brother of Michael Timmons lived in the padlocked middle bedroom.

21. That upon information and belief at all times hereinafter mentioned the middle bedroom was at all times under the exclusive control of Jeffrey Timmons.

22. That upon information and belief a search by the police officers resulted in a weapon being found in a closet and drugs and drug paraphernalia in a drawer or other hidden area.

23. That Plaintiff was arrested and charged with violating the following sections of the New York Penal Law: Section 220.41.1 Criminal Sale of a Controlled Substance in the Second Degree, Section 220.16-1 Criminal Possession of a Controlled Substance in the Third Degree; Section 265.03(1) Criminal Possession of a Weapon in the Second Degree- An Armed Felony; Section 265.02-3 Criminal Possession of a Weapon in the Third Degree; Section 220.03 Criminal Possession of a Controlled Substance in the Seventh Degree; Section 220.50-2 Criminally Using Drug Paraphernalia in the Second Degree.

24. That upon information and belief Plaintiff was arrested and interrogated by the aforementioned police officers. During said interrogation, Plaintiff was informed that they knew she had nothing to do with the weapons and drugs and that she would be released if she gave them information about her boyfriend. Plaintiff was also informed by said officers that if she did not cooperate she would be incarcerated but would be released as soon as she gave them information tying the weapons and drugs to her boyfriend.

25. That Plaintiff was thereafter imprisoned and confined at Rikers Island for 7 weeks.

26. That Plaintiff had to make several court appearances in Criminal Court.

27. That on or about April 24, 2013 all charges against Plaintiff were dismissed by Judge Brandt in Part AP6 in the Criminal Court of the City of New York, County of Queens.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

28. Plaintiff, CHRISTINE MILLINER, repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "27" inclusive as if more fully set forth at length herein.

29. That on or about August 3, 2012, the plaintiff was placed under arrest by defendant, POLICE OFFICER PAUL GRUB and thereafter confined for more than Seven (7) Weeks.

30. That on or about August 3, 2012, the plaintiff was placed under arrest by defendants "JOHN AND JANE DOES"-police officers/badge numbers unknown and thereafter confined for more than Seven (7) Weeks.

31. That the arrest and confinement were without probable cause and not based upon an arrest warrant.

32. The arrest and confinement were effectuated by the defendants within the scope of their employment.

33. That as a result of the aforesaid false arrest and confinement, plaintiff, CHRISTINE MILLINER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and employment opportunities, and suffered emotional and physical distress and injury, all to her damage in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

34. Plaintiff CHRISTINE MILLINER repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "33" inclusive as if more fully set forth at length herein.

35. That on or about August 3, 2012, defendant POLICE OFFICER PAUL GRUB, within the scope of his employment and without justification and without probable cause, imprisoned the plaintiff for approximately Seven (7) Weeks.

36 That on August3, 2012, defendants JOHN and JANE DOES- Police Officers/Badge Numbers Unknown, within the scope of their employment and without justification and without probable cause, imprisoned the plaintiff for approximately Seven Weeks.

37. That the defendant police officers, acting within the scope of their employment, confined plaintiff against her will and said confinement was not privileged.

38. That as a result of the aforesaid false imprisonment, plaintiff, CHRISTINE MILLINER sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and

credit, loss of employment and employment opportunities, and suffered emotional and physical distress and injury, all to her damage in an amount that exceeds the jurisdictional limit of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

39. Plaintiff CHRISTINE MILLINER repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "38" inclusive as if more fully set forth at length herein.

40. That on or about August 3, 2012 defendant, POLICE OFFICER PAUL GRUB in his actions as a police officer, acting under color of law and within the scope of his authority, placed the Plaintiff under arrest and thereafter confined her for more than Seven Weeks in violation of her civil rights under 42 U.S.C.A. section 1983.

41 That on or about August 3, 2012 defendants JOHN and JANE DOES- Police Officers/Badge Numbers Unknown in their Actions as police officers, acting under color of law and within the scope of their authority, placed the Plaintiff under arrest and thereafter confined her for more than Seven Weeks in violation of 42 U.S.C.A. Section 1983.

42. That the arrest and confinement were without probable cause and without an arrest warrant and were done with willful and wanton indifference to and deliberated disregard for the constitutional and statutory civil rights of the plaintiff.

43. The defendants, in their actions as police officers, acting under color of law and within the scope of their authority, deprived the plaintiff of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983.

44. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

45. That the false arrest and confinement were in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. section 1983.

46. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants acting under color of law and within their authority as law enforcement officers within the employ of THE CITY and the NYPD.

47. That as a result of the aforesaid violation of plaintiff's civil rights under 42 U.S.C.A. Section 1983 for her false arrest and imprisonment plaintiff sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment and employment

opportunities and suffered emotional and physical distress all to her damage in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

48. Plaintiff repeats, reiterates and realleges each and every allegation as contained in paragraphs "1 through "47" inclusive as if more fully set forth at length herein.

49. That defendants in their actions as police officers sought and obtained charges of: Criminal Sale of a Controlled Substance in the Second, Third and Seventh Degree, Criminal Possession of a Weapon in the Second and Third Degree and Criminally Using Drug Paraphernalia in the Second Degree.

50. That defendants in their actions as police officers had no probable cause to complain against the plaintiff for the said offenses.

51. That upon information and belief defendants in their actions as police officers falsely and maliciously represented to the Criminal Court of the City of New York that the plaintiff had committed said offenses, in order to coerce a statement and/or testimony from her, implicating her boyfriend who was charged with the same criminal offenses as plaintiff.

52. That the defendant police officers' actions were not privileged or immune.

53. That on or about April 24, 2013 all charges against Plaintiff were dismissed by Judge Brandt in Part AP6 in the Criminal Court of the City of New York, County of Queens.

54. That as a result of the aforesaid malicious prosecution, Plaintiff Christine Milliner sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit, loss of employment opportunities and suffered emotional and physical distress and injury, all to her damage in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

55. Plaintiff CHRISTINE MILLINER repeats reiterates and realleges each and every allegation as contained in paragraphs "1" through "54" inclusive as if more fully set forth at length herein.

56. That defendants in their actions as police officers, acting under the color of law and within the

scope of their authority, sought and obtained charges of Criminal Sale of a Controlled Substance in the Second, Third and Seventh Degree, Criminal Possession of a Weapon in the Second and Third Degree and Criminally Using Drug Paraphernalia in the Second Degree in violation of Plaintiff's rights under 42 USCA Section 1983.

57. That defendants in their actions as police officers had no probable cause to complain against the Plaintiff for the aforesaid offenses.

58. That upon information and belief defendants in their actions as police officers falsely and maliciously represented to the Criminal Court of the City of New York that the plaintiff had committed said offenses, in order to coerce a statement and/or testimony from her that would implicate her boyfriend, who was charged with the same criminal offenses as plaintiff in violation of her civil rights.

59. That the malicious prosecution of the Plaintiff was without probable cause and was done with willful and wanton indifference to and deliberate disregard for the constitutional and statutory civil rights of the Plaintiff.

60. The defendants in their actions as police officers acting under color of law and within the scope of their authority, deprived the plaintiff of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983.

61. That the malicious prosecution of the plaintiff was in violation of the civil rights of the plaintiff, more particularly 42 U.S.C.A Section 1983.

62. That the police officers were not acting with immunity when they deprived plaintiff of her civil rights.

63. That on or about April 24, 2013 all charges against Plaintiff were dismissed by Judge Brandt in Part AP6 in the Criminal Court of the City of New York, County of Queens.

64. That as a result of the aforesaid violation of plaintiff's civil rights under 42 U.S.C.A. Section 1983 for her malicious prosecution, plaintiff sustained serious personal and permanent injuries along with humiliation, shame indignity, damage to reputation and credit, loss of employment and employment opportunities and suffered emotional and physical distress all to her damage in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

65. Plaintiff, CHRISTINE MILLINER, repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "64" inclusive as if more fully set forth at length herein.

66. That the NYPD was responsible for hiring and training police officers, including the defendant police officers herein, that were competent and capable of properly carrying out their job without causing injury to persons, including plaintiff herein.

67. That defendant, NEW YORK CITY POLICE DEPARTMENT, was negligent, reckless and careless in the hiring, training and retention of the defendant police officers.

68. That the defendant, NEW YORK CITY POLICE DEPARTMENT, negligently failed to investigate and determine whether the defendant police officers were capable and competent to properly carry out their jobs without causing injury to persons, including plaintiff herein.

69. That upon information and belief, prior to the aforementioned incident defendant POLICE OFFICER PAUL GRUB had exhibited behavior indicating that he was unable to perform his duties as a police officer in a capable and competent manner.

70. That upon information and belief, prior to the aforementioned incident, JOHN AND JANE DOES- Police Officers/Badge Numbers Unknown had exhibited behavior indicating that they were unable to perform their duties as police officers in a capable and competent manner.

71. That as a result of the negligence of the NYPD in the hiring, training and retention of the aforementioned police officers, plaintiff, CHRISTINE MILLINER, was caused to sustain serious personal injury, emotion anguish and deprivation of her civil rights and has been damaged in an amount that exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF CHRISTINE MILLINER

72. Plaintiff, CHRISTINE MILLINER repeats, reiterates and realleges each and every allegation as contained in paragraphs "1" through "71" inclusive as if more fully set forth at length herein.

73. Prior to August 3, 2012 THE CITY and NYPD permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal arrest of all persons found in an area where police officers recovered contraband such as drugs and/or weapons. These arrests of people who could not be found to have ever exercised dominion or control over said contraband was permitted, tolerated and encouraged in an effort to coerce statements and/or testimony against others. Although such conduct was improper, the

officers involved were not disciplined, retrained or prosecuted and such incidents were covered up.. Additionally, the CITY AND NYPD permitted and tolerated a practice of allowing its officers to cover up their illegal and improper arrests by filing false charges and aiding in the prosecution of said people illegally and improperly charged with said crimes.

74. As a result, police officers of the NYPD were caused and encouraged to believe that the aforementioned conduct would be permitted and tolerated by the CITY and NYPD.

75. In addition to permitting a pattern and practice of improper arrests where contraband such as drugs and weapons are retrieved by police officers defendant CITY AND NYPD has failed to maintain a proper system for the investigation of all such incidents.

76. Upon information and belief systemic flaws in the system included but are not limited to: failing to credit testimony of non-police officer witnesses and uncritically relying on reports prepared by police officers involved in the incident

77. The foregoing acts, omissions, systemic flaws, policies and customs of THE CITY AND NYPD caused their police officers to believe that the aforementioned conduct in filing false charges would not be aggressively, honestly and properly investigated, with the foreseeable result that police officers would be more likely to engage in such behavior.

78. As a direct and proximate result of the aforesaid acts, systemic flaws, policies and customs of the defendant CITY AND NYPD the defendant police officers violated the plaintiff's civil rights.

79. That as a result of the above the plaintiff was caused to suffer serious personal injuries all to her damage in an amount that exceeds the jurisdictional limits of all lower courts.

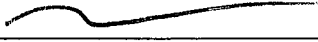
80. That an application has been made to the Supreme Court, Queens County to serve a late notice of claim for the causes of actions that were not alleged in the Notice of Claim served on July 18, 2013, as they were not timely pursuant to the General Municipal Law

WHEREFORE, plaintiff demands judgment against the defendants, who are jointly and severally liable, on the first cause of action; on the second cause of action; on the third cause of action; on the fourth cause of action; on the fifth cause of action; on the sixth cause of action; on the seventh cause of action all in amounts that exceed the jurisdictional limits of all lower courts; and plaintiff CHRISTINE MILLINER demands judgment against defendants, who are jointly and severally liable, for punitive damages and the

costs and disbursements of this action, including reasonable attorneys fees to the plaintiff and such other and further relief as the Court may deem appropriate.

Dated: New York, New York
October 30, 2013

LAW OFFICE OF JOSEPH T. MULLEN, JR.

By 

Neil A. Zirlin

Attorney for Plaintiffs

30 Vesey Street, 15th Floor

New York, New York 10007

(212) 766-1177

STATE OF NEW YORK
COUNTY OF NEW YORK

SS:

The undersigned, an attorney admitted to practice in the Courts of New York State, states, that affirmant is the attorney for the plaintiff, that affirmant has read the foregoing Summons and Verified Complaint and knows the contents thereof, and that the same is true to affirmant's knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters affirmant believes it to be true.

That the reason why this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within New York County where the attorneys maintain their offices; and that the source of affirmant's knowledge, and the grounds of belief as to those matters therein stated to be alleged on information and belief are correspondence and investigations which have been made concerning the subject matter of this action, and which are in the possession of the said attorneys.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
October 30, 2013



Neil A. Zirlin

Index No.

Year

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

CHRISTINE MILLINER

Plaintiffs,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
PAUL GRUB and "JOHN AND JANE DOES" - Police Officers,

Defendants.

SUMMONS with VERIFIED COMPLAINT

LAW OFFICE OF JOSEPH T. MULLEN, JR. & ASSOCIATES

Attorneys for Plaintiffs
30 Vesey Street, 15th Floor
New York, New York 10007
(212) 766-1177

To:

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated:


.....
NEIL A. ZIRLIN
Attorney(s) for
